

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 16, 2018

Honorable Brett Alldredge
Judge of the Superior Court
County of Tulare
221 South Mooney Boulevard, Rm 303
Visalia, CA 93291

Re: Lopez, Jimmy Lara
CDC No.: V77166
Case No.: VCF134350C
Date of Sentence: April 19, 2005

Dear Honorable Brett Alldredge:

The purpose of this letter is to provide the court with authority to resentence Jimmy Lara Lopez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Lopez was sentenced in 2005, and was convicted of section 245, subdivision (a)(2), Assault W/Firearm. The trial court sentenced inmate Lopez on April 19, 2005. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Lopez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Lopez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
First Amended Felony Complaint

cc: Honorable Bret D. Hillman, Tulare County Presiding Judge
Tulare District Attorney
Public Defender

ABSTRACT OF JUDGMENT - DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: TULARE		FILED TULARE COUNTY SUPERIOR COURT VISALIA DIVISION OCT 13 2017 STEPHANIE CAMERON, CLERK BY: <i>[Signature]</i>		
PEOPLE OF THE STATE OF CALIFORNIA vs DEFENDANT: JIMMY LARA LOPEZ	DOB: 12-24-85			VCF134350C -A
AKA:				VCF127130 -B
CII NO.: A25534374; DSP431125	☐ NOT PRESENT			-C
BOOKING NO.: 299220			-D	
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT		☒ AMENDED ABSTRACT		
DATE OF HEARING	DEPT. NO.	JUDGE BRETT ALDREDGE		
CLERK R.ESPINO	REPORTER	PROBATION NO. OR PROBATION OFFICER ☐ IMMEDIATE SENTENCING PA-331655		
COUNSEL FOR PEOPLE DDA: ADAM CLARE		COUNSEL FOR DEFENDANT ☒ APPTD. CONFLICT ATTY: DAVID ALLEN		

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 (number of pages attached)

1. Defendant was convicted of the commission of the following felonies.

☐ Additional counts are listed on attachment
_____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	1/3 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Inmate to term %)	654 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA									YRS.	MOS.
A-3	PC	245(a)(2)	ASSAULT W/FIREARM	2004	02-07-05			X	M								03	00
A-4	PC	245(a)(2)	ASSAULT W/FIREARM	2004	02-07-05			X	M		X					X	01	00
B-1	PC	594(a)	VANDALISM OVER \$400	2004	08-05-04			X	M	X							(02	(00)
					- -													
					- -													
					- -													

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED "S" or "PS"	ENHANCEMENT	TIME IMPOSED "S" or "PS"	ENHANCEMENT	TIME IMPOSED "S" or "PS"	TOTAL
A-3	PC 12022.5(a)	04	PC 12022.7(a)	03	PC 186.22(b)(1)	10	17 00
A-4	PC 12022.5(a)	S	PC 12022.7(a)	03	PC 186.22(b)(1)	S	03 00
B-1	PC 186.22(b)(1)	(3)					(03 00)

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed "S" for stayed, "PS" for punishment struck. DO NOT LIST ANY ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED "S" or "PS"	ENHANCEMENT	TIME IMPOSED "S" or "PS"	ENHANCEMENT	TIME IMPOSED "S" or "PS"	TOTAL

4. Defendant sentenced ☐ to county jail per PC 1170(h)(1) or (2)

☐ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☐ current or prior serious or violent felony ☐ PC290 or ☐ PC 186.11 enhancement

☐ per PC 667(b)(i) or PC 1170.12 (strike prior)

☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

6. TOTAL TIME ON ATTACHED PAGES:

COUNTY	CASE NUMBER

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: **24** **00**

Attachments may be used but must be referred to in this document.

Page 1 of 2

PEOPLE OF THE STATE OF CALIFORNIA vs.
 DEFENDANT: JIMMY LARA LOPEZ

VCF134350c -A

VCF127130 -B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$1,500 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment): \$1,500 per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

Case B: \$OPEN per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment): \$OPEN per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment): \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment): \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 11, below. ☐ * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5, \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ per PC 1202.5, \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ per PC 1202.5, \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ per PC 1202.5, \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Operations Assessment: \$20. per PC 1465.8. e. Conviction Assessment: \$ per GC 70373. f. Other: \$ per (specify):

10. TESTING a. ☒ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify):

11. REGISTRATION REQUIREMENT: ☐ per (specify code section):

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: Suspended: Served forthwith:

13. Other orders (specify):

16. CREDIT FOR TIME SERVED: CALCULATED BY CDC&R

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A			☐ 2933 ☐ 2933.1 ☐ 4019
B			☐ 2933 ☐ 2933.1 ☐ 4019
C			☐ 2933 ☐ 2933.1 ☐ 4019
D			☐ 2933 ☐ 2933.1 ☐ 4019
Date Sentence Pronounced		Time served in State Institution	
04-19-05		DMH	CDC CRC
		☐	☐ ☐

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.
 Defendant's race/national origin: HISPANIC

15. EXECUTION OF SENTENCING IMPOSED

- a. ☐ at initial sentencing hearing
 b. ☐ at resentencing per decision on appeal
 c. ☐ after revocation of probation
 d. ☐ at resentencing per recall of commitment (PC 1170(d).)
 e. ☒ other (specify): (SEE AMENDED MINUTE ORDER)

17. The defendant is remanded to the custody of the sheriff ☐ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation
☐ county jail ☒ other (specify): Serving sentence in CDC&R Custody since 2005.

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE
 Rita Espino

DATE
 October 13, 2017